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04.10 Introduction

The eligibility process for CLTC waiver applicants is completed through coordination between the CLTC office and the Medicaid Eligibility office. Waiver applicants must meet the financial and categorical criteria for Medicaid and meet level of care for home and community-based services initially and on an on-going basis as a participant.

04.20 Medicaid Financial Eligibility Determination Process

Verifying an applicant's Medicaid financial and categorical eligibility is an important function of the **CLTC Centralized Intake Program Assistant** in the pre-admission process.

1. If an applicant is not presently eligible for any Medicaid Category and is seeking Medicaid-sponsorship in a long term care facility or community-based services, an application for Medicaid financial and categorical eligibility must be made with the Medicaid Eligibility Office.

The Centralized Intake Program Assistant mails the Medicaid Eligibility Application for Nursing Home, Residential or In-Home Care Form 3401 to the applicant. The waiver application will not be processed until financial eligibility is determined.

2. If an applicant may be eligible for Medicaid for any category other than Category 80, 86, 16, 54, 17, 18, 10, 15, 19 (SSI) or 33 ABD/NH and is seeking community-based services, an application for Medicaid financial and categorical eligibility must be made with the Medicaid Eligibility Office. The waiver application will not be processed until financial eligibility is determined.

Centralized Intake mails the Medicaid Eligibility Application for Nursing Home, Residential or In-Home Care Form 3401 or Form 3400 B to the applicant.

The applicant will return the completed Form to SCDHHS Central Mail Center, PO Box 100101, Columbia, SC 29202-3101.

3. If an applicant is presently eligible for Medicaid Category 80, 86, 15, 16, 54, 17, 18, 19, and 10 (SSI) or 33 ABD/NH and is seeking community based services, **Centralized Intake** processes the application and releases the application to the Area Office after financial eligibility is determined. Medicaid Category 55 may have another Medicaid number, the Area Office will need to search by SSN or Medicaid number in MMIS and/or contact the EEMS Eligibility worker for resolution, as this may affect provider billing.

Note: An applicant with an SSI category will not have an Eligibility Workflow in the Phoenix record.

04.21 Verification of Medicaid Financial Eligibility

An applicant's Medicaid financial eligibility must be verified by the **SCDHHS worker** before enrollment in the waiver and by the **Case Manager** monthly thereafter.

Narrative documentation of a participant's eligibility verification by the Assigned Worker is required **initially** and **monthly**, including at **quarterly visits** and **re-evaluation via the checklist in the Phoenix narrative**.

The "Financial Eligibility Verified" field, located under Participant Information in Phoenix, is used to indicate that the applicant meets all financial criteria. For applicants with an eligibility category of 80, 16, 54, 86, 17, 18, 19, 33 and 10, 15, the field should be checked in Phoenix. The "financial eligibility verified" field will be checked by Centralized Intake. In cases where this has not occurred, the field box will be checked by the Area Office worker.

Note: All other eligibility categories require an application approval notification in the Eligibility Workflow section of Phoenix from the Medicaid Eligibility Long Term Care Worker before the verification field is checked. When the approval notification is received, the **designated Area Office staff** must check the field. If at any point the applicant becomes financially ineligible, immediate investigation is required to determine what action is necessary or if termination is appropriate. (Refer to Section 5.39.10)

If a case is released to the CLTC Area Office which does not have an Eligibility Workflow and an Eligibility Workflow is required, a Phoenix problem should be reported.

The applicant's Medicaid eligibility status must be verified by one of the following methods each month:

1. Verification from MMIS (via MMIS or related Phoenix link).
2. Verification from Medicaid Eligibility via the Eligibility Workflow section in Phoenix.
3. If Medicaid Eligibility Office determines an applicant is financially ineligible, the applicant must not be enrolled into the CLTC program. If a participant is currently enrolled in the CLTC program/waiver, follow policy outlined in 5.39.10.

04.22 Transfer of Resources

Federal regulations require Medicaid Eligibility to review the case of any Medicaid applicant or recipient who enters a nursing home or a home and community-based waiver to determine if any transfer of resources has occurred.

1. MAO (Category 15) – Resource verification is completed by Medicaid Eligibility as a normal part of the eligibility determination process, prior to providing approval notification in Eligibility Workflow section of Phoenix. No further action concerning transfer of resources is required of the **SCDHHS worker**.
2. All Other Categories of Medicaid Eligibility EXCEPT SSI (Category 80, 86, 16, 54, 17, 18, 19 and 10 and 33 and MAO (Category 15). The resource verification must be completed by Medicaid Eligibility prior to approving the Eligibility Workflow in Phoenix. A response from Medicaid Eligibility is required before entering the applicant into the waiver.

The Centralized Intake Program Assistant:

- Determines if the applicant is currently Medicaid financially eligible.
- Creates a Medicaid Eligibility Workflow as appropriate.
- Provides Medicaid Eligibility application for Nursing Home, Residential or In-Home Form 3401 or Form 3400 B.
- Receives notification from Medicaid Eligibility via the Eligibility Workflow that the application has been approved, checks the Medicaid Eligibility Verified Box in Phoenix, and releases the case to the Area Office.
- Receives notification from Medicaid Eligibility via the Eligibility Workflow that the application has been denied, terminates the waiver application, and notifies the applicant/Authorized Representative via the CLTC Notification Form 171.

The Area Office Support Staff:

- Mails all case correspondence as needed
-

The SCDHHS worker:

- Determines if the applicant is currently Medicaid financially eligible.
- Confirms the Medicaid Eligibility Verified Box in Phoenix is checked if the

Eligibility Workflow is approved. If this box has not been checked by CI, then the Area Office worker must check it.

- At the point of case transfer, reviews the applicant's Medicaid status with the **Case Manager II**.

For the Applicant Entering the Waiver, the Case Manager II will:

- Review the applicant's current Medicaid status with SCDHHS assessor at time of case transfer.
- Email waiver enrollment confirmation to the **Designated Staff** to ensure entry of enrollment date on MMIS/RSP update screen **within 4 business days**.
- Complete the CLTC Notification Form 171 to notify the applicant/ Authorized Representative of the applicant's entry into the CLTC waiver. Medicaid Eligibility will be notified of waiver enrollment via the CLTC Notification Form 171.
- Assess the applicant's financial circumstances for indications of possible changes if there is a Medicaid end date and route them to the Medicaid eligibility.

Note: If an applicant's eligibility category changes from one category to another with no interruption in Medicaid eligibility, it is not necessary to check for transfer of resources. See also Chapter 5 for on-going quarterly and re-evaluation verification requirements.

04.22.10 Applicant Leaving Nursing Home and Entering Waiver

For an individual who is in a nursing facility under **Medicaid sponsorship** (Category 10 or SSI) and is discharged to a home and community-based waiver, a look back for transfer of resources prior to enrollment in a waiver is **not** required.

MAO (Category 10) applicants who have met the thirty (30) consecutive calendar day criteria, meet all waiver criteria, and wish to enter the waiver, do not have to meet the thirty (30) consecutive calendar day criteria again.

04.22.20 MAO General Hospital (Category 14) Discharged to Waiver

For an applicant not previously enrolled in a CLTC waiver who is discharged from the hospital to a home and community-based waiver as an MAO General Hospital Category 14, a look back **is required**. Refer to Section 04.23. (An Eligibility Workflow must be created and application approved by Medicaid

Eligibility.)

04.23 Institutionalization of Waiver Participant for Full Calendar Month

If a waiver participant is institutionalized for a planned, temporary stay, the case must be monitored to ensure that the stay does not exceed a full calendar month. If a participant remains in the hospital, nursing home, rehabilitation, or any consistent combination thereof for a full calendar month, the application should be terminated. Refer to Section 05.40 for more information. For institutionalization of a waiver participant in a hospice house, see section 5.50.

If a previous waiver participant is discharged to a home and community-based waiver and remains Medicaid Payment Category MAO (Category 15), another look back for transfer of resources prior to re-enrollment is not required.

04.24 Medicaid Income Trusts

Medicaid Income Trusts allow an individual whose income exceeds the MAO limit to become Medicaid eligible for a nursing home (Category 10) or home and community-based waiver (Category 15) if the individual so chooses. All eligibility criteria, including approval of the trusts by SCDHHS Medicaid Eligibility, must be met before an applicant can be certified as Medicaid eligible.

For all questions regarding Medicaid Income Trusts, refer the applicant and/or Authorized Representative to Medicaid Eligibility.

04.25 Waiver Interaction with Medicaid Managed Care (MCO)

As part of the Medicaid verification process for waiver enrollment, it must be determined through RSP that the recipient is not participating in any other special programs. If the RSP indicates an applicant is currently enrolled in an incompatible managed care plan or other waiver, the applicant/Authorized Representative must indicate which plan or waiver is chosen for participation. This decision should be made after all other aspects of waiver eligibility have been determined but prior to enrollment. If no response from the applicant/Authorized Representative after 5 business days, a 171 Notification Form will be sent to inform that the case will be closed in 10 days from the date of notification. Phoenix will not allow waiver enrollment until the RSP change is reflected in the RSP section under the Participant's Dashboard-General Information tab.

The SCDHHS worker will provide the choice information to the Managed Care Division via the scdhhs.gov agency website. Once on the website, select "For Providers" then "Managed Care", then "Reference Tools", then "Waiver/Pace Enrollment". Complete and submit the information to the Managed Care Division. The information will be reviewed and the managed care staff may contact the submitter if information is incorrect. If the information is correct, the disenrollment will be retroactive to the end of the month preceding the effective date of waiver

enrollment.

04.26 Waiver Interaction with Medicare – Medicaid Plan (PRIME)

Medicare – Medicaid Plan (PRIME) participants may participate in the waiver and are subject to the same Medicaid financial eligibility rules and CLTC Policies and Procedures as other waiver applicants.

04.27 Waiver Interaction with Medicaid Targeted Case Management

If an applicant is currently enrolled in Medicaid Targeted Case Management, the applicant and/or Authorized Representative must indicate which plan or waiver is chosen for participation.

This decision should be made after all other aspects of waiver eligibility have been determined but prior to enrollment.

The SCDHHS worker will inform the applicant and/or Authorized Representative of available CLTC Waiver Services. The SCDHHS worker will direct the applicant and/or Authorized Representative to the assigned Medicaid Targeted Case Manager for any questions regarding Targeted Case Management services.

The assigned SCDHHS worker will mail the Freedom of Choice Form to the applicant to use to indicate the choice of programs. The applicant will indicate on the form the choice to enter the CLTC waiver or to remain in the Medicaid Targeted Case Management program. The signed form will be returned to: Division of Long Term Care Transformation, Healthy Connections Medicaid, Post Office Box 8206, Columbia, South Carolina 29201-8206

If the applicant chooses CLTC waiver services, the **SCDHHS worker** will coordinate case transition with the assigned Medicaid Target Case Manager.

The applicant may be enrolled in the CLTC waiver the calendar day following Medicaid Targeted Case Management termination.

If the applicant chooses not to enroll in the CLTC waiver, the application will be terminated as declines participation.

The discussion of the applicant and/or Authorized Representative choice and the case coordination activities with the Medicaid Targeted Case Manager will be documented in the narrative record.

04.28 Medicaid Eligibility Status Inquiry

When an inquiry from an applicant or Authorized Representative regarding the status of a pending Medicaid application is received from a CLTC Area Office, the

applicant or Authorized Representative will be directed to call the Member Service Center at 1-888-549-0820.

Urgent situations such as unexpected loss of eligibility or medical emergencies **should be referred by the Area Administrator or Lead Team member** directly to the EEMSEscalationTeam@scdhhs.gov.

SCDHHS employees may request information on the member's behalf. An Authorized Representative agreement (SCDHHS Form 1282) is not required for these inquiries made by SCDHHS employees.

04.28.10 Authorized Representative Agreement

Medicaid Eligibility's Authorized Representative Agreement SCDDHS Form 1282 allows an applicant to designate an Authorized Representative and gives a trusted person permission to act on behalf of the applicant during the Medicaid Eligibility application, appeals, review or managed care process. The DHHS Form 1282 must be signed by the applicant/beneficiary or a legal representative of the applicant/beneficiary to be valid. These documents should be faxed to SCDHHS 1-803-255-8209 or mailed to SCDHHS – Community Long Term Care 7th Floor, Post Office Box 8206, Columbia, South Carolina 29202.